Department of Education
www.education-ni.gov.uk

EQIA Consultation Report

on the

2024-25 Resource Budget

13/11/2024

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💻 E mail: debudgeteqia@education-ni.gov.uk

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1. INTRODUCTION

About the Department of Education

1.1 The Department of Education is responsible for the central administration of all aspects of education and related services in Northern Ireland - except the higher and further education sector, responsibility for which is within the remit of the Department for the Economy.

1.2 The Department's main areas of responsibility are in pre-school, primary, post-primary and special education; the youth service; the promotion of community relations within and between schools; and teacher education and salaries. Its primary statutory duty is to promote the education of the people of Northern Ireland and to ensure the effective implementation of education policy. Its key functions include:

- advising ministers on the determination of education policy;
- framing legislation;
- accounting for the effectiveness of the education system;
- allocating, monitoring and accounting for resources;
- through the Education and Training Inspectorate, evaluating and reporting on the quality of teaching and learning and teacher education.

1.3 The Department also aims to ensure that children, through participation at schools, reach the highest possible standards of educational achievement. In pre-school settings, schools and through the Youth Service, the Department also promotes personal well-being and social development, so that children gain the knowledge, skills and experience to reach their full potential as valued individuals.

2. SECTION 75 AND THE STATUTORY DUTIES

2.1 Section 75 of the Northern Ireland Act 1998 requires Public Authorities, including the Department of Education when carrying out their functions to have due regard to the need to promote equality of opportunity between nine categories of persons, namely:

- between persons of different religious belief, political opinion, racial group, age, marital status or sexual orientation;
- between men and women generally;
- between persons with a disability and persons without; and
- between persons with dependants and persons without.

2.2 Without prejudice to the above obligations, the Department must also have regard to the desirability of promoting good relations between persons of different religious belief, political opinion or racial group.

2.3 The Equality Commission for Northern Ireland approved the Department of Education's Equality Scheme in September 2013. The Scheme outlines how the Department proposes to fulfil its statutory duties under Section 75.

2.4 Under the statutory duties contained within Section 75 of the Northern Ireland Act 1998, the Department undertakes to carry out an equality impact assessment (EQIA) on each policy or group of co-joined policies where screening has indicated that there may be significant implications in relation to one or more of the nine Section 75 categories.

2.5 Part of the EQIA Process is Consultation.

2.6 This EQIA consultation report has been made available as part of the Formal Consultation stage of the EQIA relating to the 2024-25 Resource Budget and we would welcome any comments which you may have in terms of this EQIA and our preliminary recommendations with regard to measures to mitigate adverse impact and alternative policies.

2.7 Further copies of this EQIA Consultation Report are available on our website at www.education-ni.gov.uk

If you have any queries about this document, and its availability in alternative formats then please contact Budgeting Team as follows:

E-mail: debudgeteqia@education-ni.gov.uk

Write to: **Budgeting Team**
Department of Education
Room S12
43 Balloo Road
Rathgill
BANGOR
BT19 7PR

The deadline for comments is 10 January 2025.

3. EXECUTIVE SUMMARY OF THE CONSULTATION REPORT

3.1 The Department of Education Budget 2024-25 consultation is published in a situation where Executive departments are collectively facing an extremely challenging budget.

3.2 Following the restoration of the Executive on 3 February 2024, the Department of Finance (DoF) commissioned the Executive's Budget 2024-25 Exercise on 18 February 2024. Through these exercises the Department identified a Resource requirement of c£3,484.9m plus £50.6m for the Executive's Early Years and Childcare Strategy.

3.3 Despite the additional funding provided by the financial package, which accompanied the restoration of the Executive, funding requests from all departments far outweighed the funding available for allocation.

3.4 For planning purposes, schools, NDPBs, Departmental business areas, Early Years and school-age childcare settings and other third-party organisations which provide curricular support to schools were provided with an interim allocation for 2024-25 in March 2024. This was based on the 2024-25 indicative Resource Budget of £2,498.808m.

3.5 The Executive considered and set the Northern Ireland Budget 2024-25 on 25 April 2024, and as outlined by the Finance Minister, no department received the level of funding it bid for.

3.6 DE received a Resource allocation of £2,874.418m which was £4.369m (0.15%) less than the closing 2023-24 budget and which did not address all the pressures faced by the Department. In addition, a further £25m was set aside by the Executive in respect of the Executive's Early Learning and Childcare Strategy.

3.7 In June Monitoring, the Department was allocated an additional £29.5m against £293.4m of inescapable pressures submitted to the Executive. The Department was also allocated £43.7m to help address the Education Authority's (EA) Pay and Grading review, and the aforesaid £25m of funding set aside specifically for the Executive's Early Learning and Childcare Strategy was transferred to the Department.

3.8 The purpose of this Equality Impact Assessment (EQIA) is to present the decisions required by the Department to live within its 2024-25 Budget allocation and the potential impact to people in Section 75 categories of those decisions on the services and supports the Department provides.

3.9 Your comment and feedback on the decisions required and impacts is sought through this consultation. The consultation activities will inform decision-making, and every response received by the deadline will be considered.

4. DEFINING THE AIMS OF THE POLICY

Resource Budget 2024-25

4.1 The 2024-25 Final Budget allocation for Education was announced on 25 April 2024. The Budget provides the Department with a Resource allocation of c£2,874.4m for the 2024-25 financial year. In addition to this funding, the Executive set aside £25m for a Childcare Strategy, to be held centrally, pending Executive approval of proposals brought forward by the Task and Finish Group.

4.2 Departments are required to screen proposed budget decisions in line with Equality Commission Northern Ireland guidance and, should an EQIA be required, this will be published to support the consultation process.

4.3 The purpose of this paper is to set out the Department's initial assessment of the equality impacts of the 2024-25 Resource Budget on educational services.

Resource Budget 2024-25 Outcome

4.4 The 2024-25 Budget settlement provided the Department of Education with c£2,874.4m Resource. Table 1 compares this position with the 2023-24 closing position.

Table 1

	2024-25 Opening £m	2023-24 Closing £m	Variance between 2023-24 and 2024-25 £m	Variance between 2023-24 and 2024-25 %
Resource DEL*	**2,874.4**	**2,878.8**	**(4.4)**	**(0.2)**

*** 2024-25 Opening budget includes £0.654m Peace Funding compared to £1.128m in the 2023-24 closing budget.**

4.5 Following on from June monitoring, as part of finalising the 2024-25 budget, the Minister has taken a number of significant decisions in order to minimise the Department's projected overspend, including:

- not reinstating any of the programmes or Third Party (TPO) funding cut in 2023-24;
- significant Departmental and NDPB staff vacancy controls to reduce pressures;
- non-funding of c£52m of pressures deemed to be high priority and not inescapable;
- non-funding of a number of smaller pressures (c£3.4m);
- £136.3m reduction in 2024-25 EA Pay & Grading pressure, due to a pragmatic solution taken forward by Department officials;
- non-funding of the EA's initial Maintenance pressure (£31.1m) and Shared Education pressures (£0.4m);
- further savings and cuts to the EA Block Grant (£15m);

- savings identified by the Department, including cessation of the ring-fenced maintenance fund for Special Schools (£5.2m);
- cessation of the Home to School Link for Special Schools (0.6m);
- increasing the price of school meals to address inflationary cost increases (£0.6m); and
- a critical review of inescapable pressures (£15.7m).

4.6 Following implementation of these decisions, the Department now faces inescapable resource pressures totalling circa £190m for 2024-25.

4.7 Whilst the Department will continue to explore every opportunity to reduce this shortfall further, the scale of the budget shortfall is such that the savings required could only be delivered through an extensive redundancy programme.

4.8 The Department will also continue to bid for additional funding for the significant and unavoidable pressures faced by the sector notably demand-led, statutory Special Educational Needs (SEN) pressures and pay pressures on our education workforce.

4.9 Final budget decisions were made during August and September 2024 including an additional £83.7m allocated to SEN and £190.6m of funding distributed to schools through the Common Funding Formula. This brings the final 2024-25 opening Aggregated Schools Budget (ASB) to £1,620.6m, which represents a 14.8% increase in comparison with the 2023-24 ASB closing position. In making these decisions the Department has endeavoured to identify and minimise any adverse differential impacts.

4.10 Further detail on the Departments Opening budget can be found at https://www.education-ni.gov.uk/publications/de-budget-202425

5. CONSIDERATION OF AVAILABLE DATA AND RESEARCH

5.1 In assessing the impact of the 2024-25 Resource Budget policy against the Department's obligation under Section 75 of the 1998 Act, the Department concludes that there is evidence of some differential impact in respect of some Section 75 categories.

5.2 Impacts have been considered against the backdrop of available data, as derived from:

- School Census 2022/23[1] (published March 2023);
- School Census 2023/24 (published February 2024 and revised in March 2024);
- School Annual Enrolments 2022/23[2];
- School Annual Enrolments 2023/24[3]
- Registrar General Annual Report 2022[4];
- 2015[5] Young life and Times (YLT) Survey;
- Barnardo's Still Hidden, Still Ignored Who cares for young carers? December 2017[6]
- Child's Social Care Statistics for Northern Ireland 2022/23[7];
- 2021 Census[8];
- Racial Equality Indicator Report 2014-2019[9];
- National Childrens Bureau - Informing the Development of an Emotional Health and Wellbeing Framework[10];
- Annual Enrolments at Grant Aided Schools in Northern Ireland 2023/24[11];
- CARA Friend[12];
- Chief Inspectors Report 2016-2018[13]; and
- Young Carers[14].

5.3 The Department continues to work with its Arm's Length Bodies to understand the impact of the Budget 2024-25 outcome on service delivery, the potential impacts of the policy on the various Section 75 groups and how any impacts could be mitigated. The Department will seek to gather further information on potential impacts through this consultation.

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[1] 2023-24 report impacted by Action Short of Strike - For any schools taking part in ASOS, information on the religion or ethnicity of a pupil was not included in the paper summary returns.
[2] School Annual Enrolments 2022/23
[3] School Annual Enrolments 2023/24
[4] Registrar General Annual Report 2022
[5] 2015 Young Life and Times Survey
[6] Still Hidden, Still Ignored Who cares for young carers?
[7] Childrens Social Care Statistics Northern Ireland 2022-23
[8] 2021 Census | Northern Ireland Statistics and Research Agency
[9] Racial Equality Indicator Report 2014-2019 (executiveoffice-ni.gov.uk)
[10] National Children's Bureau - Informing the Development of an Emotional Health and Wellbeing Framework
[11] Annual Enrolments at Grant Aided Schools in Northern Ireland 2023/24
[12] Cara Friend
[13] Chief Inspector's Report 2016-2018
[14] Young carers | Barnardo's (barnardos.org.uk)

6. ASSESSMENT OF IMPACTS

6.1 The proposed policy has been considered and the following assessments made as to whether or not there will be an adverse impact on any of the nine Section 75 categories or any of the multiple identity groups:

Group	Adverse Impact on specific sub group
Religious Belief	Whilst the Department has no specific data to determine the impact of the overall budget on this group the 2022-23 annual school census breakdown of school population by religious belief in Northern Ireland showed that 30% of the school population are Protestant, 50% Catholic, 20% other religions or no religion. In the absence of more robust data outside of that above it is difficult to determine the impact(s) on this group of the Department's 2024-25 budget allocation. However, this category will not experience any major or minor negative impacts through budget allocations.
Political Opinion	Whilst the Department has no specific data to determine the impact of the overall budget on this group, there has been an historical tendency for religion to closely reflect the political opinion of the school population. In the absence of more robust data outside of that above it is difficult to determine the impact(s) on this group of the Department's 2024-25 budget allocation. However, this category will not experience any minor or major impacts through budget allocations.
Race	Whilst the Department has no specific data to determine the impact of the overall budget on this group, NISRA report on school annual enrolments 2022-23 recorded that 6.1% (21,762) of the school population were from ethnic minority groups. The report also concluded that there has been an increase in the number and proportion of newcomer pupils in schools in Northern Ireland. A newcomer pupil is one who has enrolled in a school but who does not have the satisfactory language skills to participate fully in the school curriculum. In 2022-23, there were nearly 19,500 newcomer pupils accounting for 5.5% of the school population. As set out in "Key Inequalities in Education and Communities" document produced by the Equality Commission for Northern Ireland in October 2017; children from the Traveller community and Roma

	children have some of the lowest levels of attainment of all equality groups. This category will not experience any negative impacts through budget allocations to the transfer procedure.
Age	The Department provides benefit to all children and young people across Northern Ireland. The 2023-24 annual school census indicated that: • there are 22,556 pupils in funded pre-school education (pre-compulsory school age); • there are 169,465 pupils in primary schools and preparatory departments (Year 1-7); • there are 156,438 pupils in post-primary schools (Years 8 -14); and • there are over 7,192 pupils in special schools (ages 4 – 19). This category will not experience any negative impacts from budget allocations to Entitlement Framework.
Marital Status	The Department provides benefit to all children and young people across Northern Ireland. Whilst the Department has no specific data to determine the impact of the overall budget on this group, in 2022 there were 8,564 marriages in Northern Ireland. Of those marriages in the age band 16-19, there were 56 males and 74 females. In the same period, there were 266 same sex marriages; in the under 25 age band there were 0. This category will experience no negative impacts from budget allocations.
Sexual Orientation	The Department provides benefit to all children and young people across Northern Ireland. This category will experience no minor or major negative impacts from budget allocations.
Gender	The Department provides benefit to all children and young people across Northern Ireland. Whilst the Department has no specific data to determine the impact of the overall budget on this group, information drawn from the 2022-23 annual

	school census shows that there is a fairly even distribution of males and females within the school population, with 50.8% male pupils and 49.2% female. This category will experience no minor or major negative impacts from budget allocations.
Disability	The 2023-24 school census (published February 2024 and revised in March 2024) indicates that 19.2% of pupils in schools were recorded as having special educational needs; and that 7.6% had a statement of special educational needs. This category will experience major negative impacts from budget reductions to Home to School link and minor negative impacts from budget reductions to SEN (SENCo Implementation of SEND Act, SEND implementation and SEN Transformation) and Entitlement Framework .
Dependency	The Department provides benefit to all children and young people across Northern Ireland. The 2015 Young Life and Times (YLT) Survey (of 16-year-old young people) reported 9% of their respondents had caring responsibilities. Barnardo's reported in 2017 "Still Hidden, Still Ignored, Who cares for young carers?" that the average age of a young carer is 12. It was identified in the 2011 Census 6,700 young people (aged 0–17) were providing between 1 and 19 hours of unpaid care per week, while a further 960 were providing 20–49 hours, and 820 care for 50 hours or more. At 31 March 2023, there were 3,801 Looked After Children in Northern Ireland (Children's Social Care Statistics for Northern Ireland 2022/23, Department of Health). This category will experience no major or minor negative impacts from budget allocations.
Multiple identities	Significant investment is made annually by the Department in support of a suite of policies, interventions and programmes which help to address educational underachievement, including those with a particular focus on targeting disadvantage. The policy impacts people with multiple identities through the SEN allocations. For children and young people with multiple identities, school may be in receipt of funding through various other programmes to support these pupils e.g. Extended Schools; nurture; etc - it may be likely that they benefit from multiple funding sources.

7. CONSIDERATION OF MEASURES WHICH MIGHT MITIGATE ANY ADVERSE IMPACT AND ALTERNATIVE POLICIES WHICH MIGHT BETTER ACHIEVE THE PROMOTION OF EQUALITY OF OPPORTUNITY

7.1 The impact of the Resource Budget for 2024-25 on the Department is extremely challenging with the Department facing the most unpalatable decisions to seek to manage its spending.

7.2 Sustaining a high quality and inclusive Educational System is a core priority for the Department. The Department's budget will continue to be deployed in support of this objective. The promotion of equality of opportunity and good relations is also an important part of ongoing policy development, legislative activities and operational programmes. In managing within the Resource Budget allocations, the Department will make every effort to protect front line service delivery.

7.3 The Department will seek to ensure that its budget allocations are applied as far as possible in a manner that does not disproportionately or adversely affect one Section 75 category.

7.4 It will however be difficult to mitigate the potential adverse impacts anticipated, given the scale of additional funding required in 2024-25. Where options for efficiencies are identified, these will be subject to separate screening. Where necessary, full EQIAs will be undertaken as options to live within the Department's 2024-25 budget allocations are further developed and implemented.

7.5 The Department would welcome comments on any potential equality implications arising from the 2024-25 Budget and will consider the need for any further mitigating actions in light of responses received during the consultation.

7.6 Budget allocations will be revisited during the financial year, particularly during the Monitoring Round process. Funding may be reallocated to other priority areas depending on relative spend levels in each Departmental business area. Response from this consultation will be used to inform such reallocations.

7.7 While any efficiencies that can be identified will be pursued, the reality is that the Budget does not fully address all the Education pressures and will pose a significant challenge, given that about 80% of the sector's costs are staff related.

7.8 The Independent Review of Education identified potential opportunities to deliver a more efficient and more sustainable education system in the future, where resources are used more effectively for the ultimate benefit of our children and young people. However, this will not be delivered without political will and stakeholder agreement. Critically, long-term efficiencies will only be secured if there is adequate up-front funding to deliver on the Independent Panel's recommendations.

7.9 In respect of the identified adverse impacts, DE considers that the following actions will reduce or justify the impacts:

Adverse Impact	Mitigation which improves equality of opportunity
Aggregated Schools Budget	The Department and the EA will monitor schools' spend as the year progresses. The EA will engage with schools to identify areas of expenditure which can be reduced and / or curtailed, to manage within budget as much as possible. That said, ultimately it must be recognised that there will be instances whereby schools incur unavoidable expenditure (e.g., there is limited scope for schools to reduce school staff pay costs in the absence of a voluntary exit scheme).
SEN	Budget reductions under both the 'SENCo Implementation of SEND Act' and 'SEND Implementation Team' budgets will have a minor impact on the disability category as schools prepare for the new duties under the SEND Act 2016. In mitigation, the Department continues to lead a programme of transformation and work closely with the EA and other stakeholders on a comprehensive plan of SEN reform to focus on improved outcomes and more cost-effective delivery.

8. FORMAL CONSULTATION ON THE ACTUAL IMPACT OF EXISTING POLICIES AND THE LIKELY IMPACT OF PROPOSED POLICIES

8.1 The Department wishes to engage with as wide an audience as possible on its findings and proposals to date as described in this report. We are committed to seeking the views of those who are affected by the decisions that it will make in relation to its budget reductions. We are keen to hear from individuals and organisations about their views on the equality implication of the decisions being made and about any mitigations that the Department could put in place to address what will undoubtedly be the adverse impacts of a reduction of this size.

8.2 Decisions around the budget reductions need to be made urgently so that they can be implemented in time to take effect over as much of the financial year as possible; and so that services that depend on our funding can make the necessary plans as soon as possible.

8.3 Therefore, given the urgent need to provide certainty of funding to business areas, ALBs, and organisations who depend on our funding, the Department will consult over an eight week period. Responses received during this consultation will be used to consider further mitigation measures, to inform in-year budget reallocation processes if those are put in place during 2024-25, and to direct any additional funding (or further reductions) that emerge over the course of the financial year.

8.4 The Department welcomes comment on any aspects of this document. Interested parties are encouraged to make responses by 10 January 2025. Consultation responses received will be used to inform further mitigation measures and reallocation of any additional funding available during 2024-25.

8.5 Further consultations and equality screening will be considered, as appropriate, as plans to live within Budget 2024-25 allocation are considered during the year.

8.6 A consultation response form is included at ANNEX A.

The closing date for responses is 10 January 2025.

Any enquiries about the consultation should be addressed to the Budgeting Team whose contact details appear on Page 18.

9. PUBLICATION

9.1 The outcomes of this formal EQIA consultation will be published on the Department website or can be obtained in other formats from DE's Budgeting Team (for contact details see Page 18).

10. MONITORING

10.1 In keeping with this Department's commitments under its Equality Scheme, any adverse differential impact on equality of opportunity or good relations that may be identified through this assessment process will be taken into account in informing the Department's Budget 2024-25 allocations.

10.2 Any such findings will be used to inform further development of mitigations, revised Budget allocations and in-year bids.

ANNEX A



Department of Education Consultation Response Form for 2024-25 Resource Budget Policy

The closing date for responses is 10 January 2025

Your Details:

Name: _____
Address: _____
_____
_____
_____

Email address: _____
Contact Phone number: _____

If you are the official respondent for a group or organisation please state its name:

_____

If you require this document in an alternative format (such as in large print, in Braille, or paper) and/or language, please contact the Budgeting Team as follows:

💻 **E mail:** **debudgeteqia@education-ni.gov.uk**

Consultation Response Form Questions:

As set out in this document, given the constrained financial position in 2024-25 and rising service demand associated with delivering statutory and policy obligations the Department is facing significant challenges going forward.

In consulting on the Department's 2024-25 Budget allocations views are welcomed on the following:

1. Are there any data needs or issues in relation to any of the Section 75 equality categories that have not been identified in Section 5 and 6 of the EQIA consultation document? If so, what are they? Please provide details?

2. Are there any adverse impacts in relation to any of the Section 75 equality groups that have not been identified in section 6 of the EQIA Consultation document? If so, what are they?

3. Please state what action you think could be taken to reduce or eliminate any adverse impacts in seeking to manage the Department's resource budget?

4. Are there any other comments you would like to make in regard to the consultation process generally?

The Department welcomes comment on any aspects of this document. Interested parties are encouraged to make responses by 10 January 2025, which will be used to inform further mitigation measures and the reallocation of any additional funding available during 2024-25.

Please return the completed document preferably by E-mail to:

debudgeteqia@education-ni.gov.uk

or

alternatively, by posting it to:

Budgeting Team
Department of Education
Room S12
43 Balloo Road
Rathgill
BANGOR
BT19 7PR

Deadline for receipt of completed forms will be: 10 January 2025.